

Court No. - 32

Case :- WRIT - C No. - 37230 of 2019

Petitioner :- Kalam

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Girja Shanker Mishra

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Saurabh Shyam Shamsbery,J.

As payed by the learned counsel for the petitioner, put up on 22.11.2019, as fresh to enable him to obtain instructions.

Order Date:-16.11.2019

SB

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Case :- WRIT - C No. - 37230 of 2019

Petitioner :- Kalam

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Girja Shanker Mishra

**Counsel for Respondent :- C.S.C.,Mahboob
Ahmad**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Neeraj Tiwari,J.

This writ petition has been filed, *inter alia*, for the following reliefs:

"Issue a writ , ordr or direction in the nature of certiorari quashing the impugned rewcovery of Rs. 419887/- in pursuance of the citation dated 16-3-2019 (Annexure no 02) issued by the Executive Engineer, Vidyut Vitran Khand, First, U.P.Power Corporation Ltd, Ghazipur, (respondent no.4) to the District Magistrate Ghazipur(respondent no. 2) against the petitioner.. "

Heard the learned counsel for the petitioner and Mr. Mahboob Ahamd,learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action

against the petitioner without giving any opportunity of hearing and following the provisions contained under the U.P. Electricity Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 12.12.2019 at 11.00 A.M. before the Respondent No.4, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.4, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of seven weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner. In case of default in filing the objection/representation, as indicated herein above, the present interim order shall stand vacated automatically.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does

not appear on the said date fixed, the impugned demand notice shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 26.11.2019

MLK